# Managing Risk

From R. Martens and R.S. Vealey, *Successful Coaching*, 5th ed. (Champaign, IL: Human Kinetics, 2024), 361-378.

The objective of risk management is to produce the safest environment possible for your athletes and others and to avoid litigation. Follow these four steps to managing risk in your sport.

## Step 1: Identify the Risks

Determine the likely risks you face when coaching your team by carefully reviewing the 10 legal duties discussed in this chapter. You need to consider your athletes and others for whom you have responsibility. For example, you'll need to consider the activity, environment, equipment, methods of instruction, and supervision in identifying risks.

- *Wrestling example.* In a contact sport such as wrestling, you recognize that infectious skin diseases such as impetigo are a risk.
- *Football example.* In a collision sport such as football, you recognize that concussion is a risk.

## Step 2: Evaluate the Risks

Assign a probability to the likelihood that each risk may lead to an injury and the likely severity of that injury. Begin by determining whether an injury is likely to occur often, infrequently, or seldom. Next, decide whether the severity of the injury and its financial impact are likely to be high, medium, or low, with high representing a severe injury with great financial impact and low representing a slight injury with little financial impact.

- *Wrestling example.* You decide that the likelihood of an infectious skin disease occurring is high, and that its severity and financial impact are likely to be low.
- *Football example.* You decide that the likelihood of a concussion occurring is high, and that its severity and financial impact are just as likely to be high.

## Step 3: Select a Risk Management Approach

You have four choices of approaches in managing risks as a coach: (1) avoiding, or eliminating the risk; (2) transferring the risk; (3) reducing the risk; and (4) retaining the risk, or keeping the situation as is (Spengler et al., 2016). Consider these approaches:

- *Avoid the risk by not engaging in the activity.* For example, you might decide the risk is too high to teach an advanced routine on the uneven parallel bars or an advanced dive on the 10-meter platform. During the COVID-19 pandemic, many

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sport practices and competitions were canceled to avoid the risk of athletes spreading the virus to each other.

- *Reduce the risk by taking action to minimize the possibility that harm will occur as a result of the risk.* This is a common approach in sport, where coaches attempt to reduce the risk through safety precautions such as covering the sprinkler heads on a softball field. Basically, coaches reduce risk by fulfilling their 10 legal duties (e.g., teaching proper technique, warning of inherent risk, providing a safe physical environment).
- *Retain the risk.* This concept of keeping things the way they are is harder to understand because it seems we can always attempt to reduce the risk for athletes. One perspective is to think of historical changes in sport that made it safer for athletes. For example, helmets were not mandatory for professional ice hockey players until 1979. Thus, prior to that date, the risk of not wearing helmets was *retained*. The helmet mandate was developed at a later date in an attempt to *reduce* the risk of head injuries in players. However, the risk was retained because although helmets prevent skull fractures and some impact, they still don't prevent concussions in ice hockey or football. To clarify, certain risks are inherent despite our best efforts to reduce or eliminate them.

  Another perspective on retaining risk is that sports will always involve some risk. Soccer players retain the risk of lower-extremity injuries when they engage in sliding tackles. Although coaches can teach proper technique and tactical understanding of when to use this technique, it still contains inherent risk due to the physicality of soccer. Most all sports retain some risk, despite our intent to reduce the risk.

- *Transfer the risk in several ways.* For example, rather than driving your own car when transporting athletes, you can use the school's vehicle or public transportation. You can transfer the financial risk by being insured for legal liability costs (see the Insurance section for more information about insurance). Under certain circumstances, you can transfer the inherent risks through participation agreements (see Waivers and Participation Agreements). Remember—you cannot transfer your legal duties, but you can transfer some or all of the risk.
    - *Wrestling example.* You choose to attempt to reduce the risk by doing all that you can to prevent the occurrence of infectious skin diseases: educating your wrestlers about the problem and following good sanitation practices. You can also ensure that your team has health insurance coverage, which reduces the financial impact if an athlete does contract a disease.
    - *Football example.* Due to the inherent risks in the collision sport of football, your approach is to reduce the risk as much as possible (see the box on Reducing the Risk of Concussion in Football). However, the violent collisions

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that take place that are a sanctioned part of the game of football means that athletes must accept or retain the risk of concussion inherent in that activity.

## Step 4: Implement the Approach

Your first course of action will always be to eliminate or reduce the risk by acting reasonably and prudently.

- *Wrestling example.* You attempt to reduce the risk of infectious skin diseases and make certain that the team has health insurance coverage.
- *Football example.* You attempt to reduce the risk of concussion to your players, but realize that the collision sport of football will also retain a risk for players to suffer a concussion.

### Reducing the Risk of Concussion in Football

The topic of concussion in football has mushroomed due to the class action lawsuit filed by former NFL players in 2012. The final settlement allowed for one billion dollars to be provided for compensation to retired players with serious medical conditions linked to repeated head injuries. The result has been a heightened awareness of concussion causes, symptoms, and prevalence at all levels of the sport, including youth football.

Coaches in any sport where concussion is possible should follow strict guidelines and procedures in an attempt to reduce concussion. Heads Up: Concussion in High School Sports (www.cdc.gov/headsup/highschoolsports/index.html) are particularly important guidelines of the CDC (2019) that coaches in the collision-oriented sport of football should follow. Remember that our intent is to reduce the risk of concussion in a sport that retains the risk of head injuries due to the nature of the activity. Specifically, coaches should do the following:

1. Teach athletes proper technique to avoid hits to the head. Punish athletes for unsafe actions such as using their helmets to contact another athlete.
2. Limit the amount of contact during practice.
3. Complete a concussion education course (www.cdc.gov/headsup/youthsports/training/index.html). Such courses are mandatory for coaches in most states.
4. Educate athletes and parents and guardians on concussion. Athletes tend to underreport experiences of concussion to avoid removal from competition. Ensure they know the risks of permanent brain damage and even death from unreported concussions. Also, it is your legal duty to warn players and parents and guardians of the inherent risk of concussion in football (see Duty 3: Warn of Inherent Risks in the Coaches' Legal Duties section).
5. Have certified athletic trainers at practices and competition. It would be ideal to also have a physician available. Ensure that any player who receives a blow to the head is immediately evaluated by the athletic trainer or physician.

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**Reducing the Risk of Concussion in Football *(continued)***

6. Have an emergency action plan in place to respond to a possible concussion.
7. Make sure that athletes always wear a helmet that fits well and is in good condition. Helmets actually do not protect against concussion, but they may absorb some of the force of a blow and prevent skull fractures.
8. Keep a card in your pocket at practices and competitions that lists the symptoms and danger signs of concussion.
9. Immediately remove an athlete from participation when they receive a blow to the head. "When in doubt, sit them out" (Centers for Disease Control and Prevention, 2019). Inform the athletes' parents or guardians of the possible concussion and give them a fact sheet on concussion.
10. Keep the athlete out of activity until a health care professional gives the okay to return to play. This is an example of transferring risk to the health care professional.

All 50 states in the United States and the District of Columbia have sports concussion laws. Most of the state laws contain three common tenets: (1) Any athlete suspected of having sustained a concussion must immediately be removed from play; (2) The athlete may not be returned to action the same day; (3) The athlete may be returned to action only after written clearance is provided by a licensed health care professional (the definition of which varies from state to state).

## Immunity

In our litigious society, silly lawsuits are common. Parents have sued when their children were removed from a starting lineup or cut from their teams. A youth baseball coach was sued after a losing season, with the complaint being that he was a crummy coach. Parents of a baseball player sued for 80 percent of the sign-up fee because the player only played in 20 percent of the games (Sadler, 2022). Frivolous lawsuits happen all the time, and youth sports is by no means immune. Although *frivolous* means "nonsensical," law dictionaries define a *frivolous claim* as one that has no legal basis or merit and is typically filed for unreasonable purposes such as harassment. Most states have legislation to protect coaches against frivolous claims.

Volunteer coaches were provided additional protection in 1997 with the passage of the federal Volunteer Protection Act (VPA). This law provides volunteer coaches of nonprofit organizations with immunity against frivolous lawsuits. Specifically, the VPA protects volunteers against lawsuits if coaches were acting within the guidelines of their job description and coaches are authorized to act based on their job descriptions. The federal law does not protect volunteer coaches against gross negligence or reckless misconduct. Consequently, the courts must decide if a lawsuit is frivolous and whether it involves

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ordinary or gross negligence. Also, the VPA does not protect nonprofit organizations from litigation—it only protects the volunteer (Mahoney, 1998).

Although the intent of such legislation is positive, these immunity laws actually provide little protection. In fact, in a few situations, the perception of protection has led sport administrators to deemphasize the education of their coaches, an unintended adverse response to these laws.

To address the lack of oversight (as a response to the USA Gymnastics sexual abuse scandal surrounding Dr. Larry Nassar), the Protecting Young Victims from Sexual Abuse and Safe Sport Authorization Act was passed into law in 2018. This law emphasized that the volunteer coach carries great responsibility for providing a safe environment for athletes, despite their volunteer status (McCown, 2019). It recommends training and support to equip coaches to better meet young athletes' needs. The United States Center for SafeSport offers resources and training for youth sport organizations on mandatory reporting, sexual misconduct awareness, and emotional and physical misconduct.

By accepting the "Athletes First, Winning Second" philosophy espoused in this book, you will want to do all you can to protect your athletes. That requires you to become the best-trained coach possible. Do not rely on immunity laws for protection; instead, rely on yourself to provide a safe environment through competent coaching.

## Coaches' Legal Duties

Over the past 50 years, through thousands of lawsuits, the U.S. courts have defined and continue to define your legal duties as a coach. These duties may vary from state to state and may change as sport litigation continues unabatedly. This section describes the most well-established duties (see figure 20.2) and at least some of the actions that you can take to fulfill your legal duties as a coach. Actually, much of this book advises you directly or indirectly on how to fulfill your legal responsibilities. Some of the case studies that introduce each of the 10 duties are based on actual court cases.

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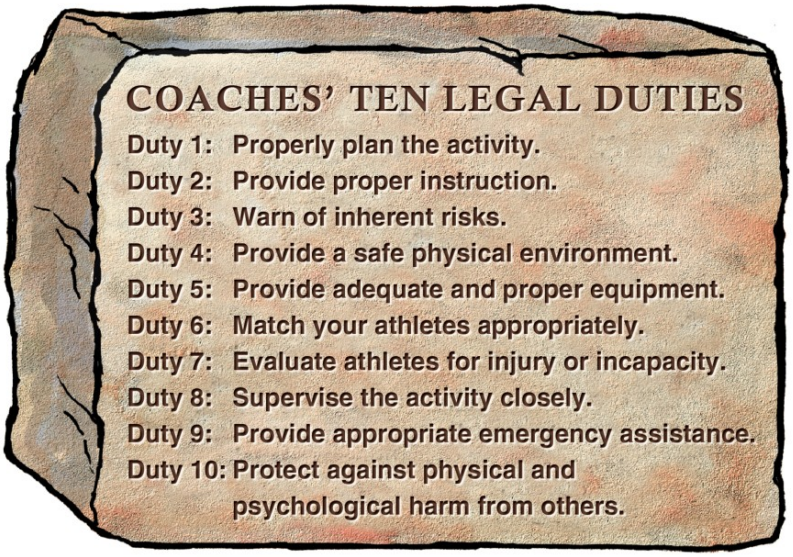



*FIGURE 20.2 Manage your risk and liability as a coach by fulfilling your duties.*

Figure 20.2 — Text in Diagram

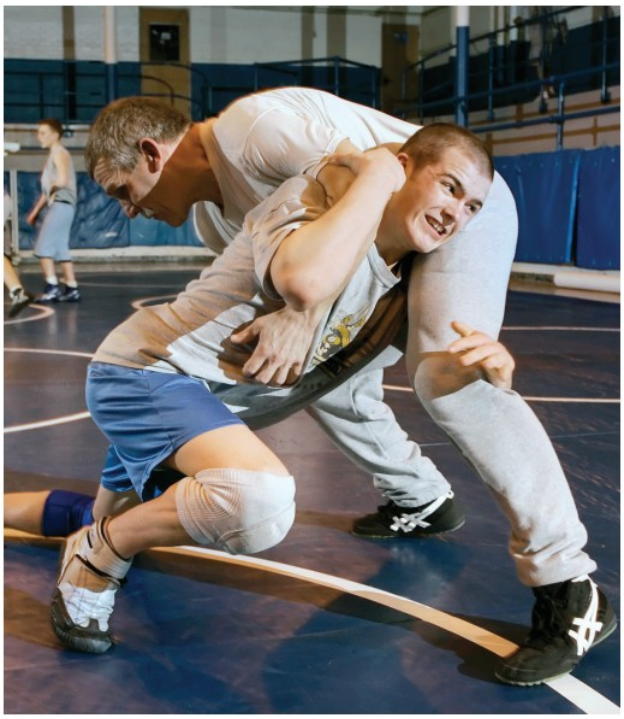
**Coaches' Ten Legal Duties:**

1. Properly plan the activity.
2. Provide proper instruction.
3. Warn of inherent risks.
4. Provide a safe physical environment.
5. Provide adequate and proper equipment.
6. Match your athletes appropriately.
7. Evaluate athletes for injury or incapacity.
8. Supervise the activity closely.
9. Provide appropriate emergency assistance.
10. Protect against physical and psychological harm from others.

## Duty 1: Properly Plan the Activity

In the second week of practice, first-year wrestling coach John Sterling wanted to impress his team with his knowledge of the sport. He showed them an advanced takedown technique called souple, in which the wrestler lifts the opponent and then falls back on his neck and shoulder with the weight of the opponent on top of him. Manuel Garcia, a 15-year-old in his first year of wrestling, attempted the takedown and broke his neck, which left him paralyzed. The coach and school district were sued and ruled negligent because Coach Sterling failed to prepare Manuel for this advanced skill with proper strength training and lead-up skills.

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### *Understanding Your Duty*

The courts have repeatedly ruled that coaches have a duty to properly plan the activities for the athletes participating under their supervision.

Among your essential duties is to teach the skills of the sport in the correct progression. Avoid teaching advanced skills too quickly just because a few of your better athletes are ready or because you are getting bored. Practicing advanced skills can be dangerous, and you can be found negligent, as the wrestling coach was, if you don't follow a reasonable progression. A reasonable progression will be judged relative to the progression other prudent coaches use and individual athletes' readiness.

To fulfill your planning duty, you must consider each athlete's developmental level and current physical condition. You may not fulfill your duty to properly plan activities if you prescribe the same plan for all of your athletes. Thus, at least at the beginning of the season, evaluate your athletes' readiness. This is a good coaching practice for planning practices and will also provide a written record validating your effort to plan your activities properly.

### *Fulfilling Your Duty*

1. Develop a season plan using progressions appropriate for your athletes.
2. Test athletes to determine their physical capacity and skill level for your sport.
3. Develop written practice plans that adhere to the recommendations in this course.
4. Adapt your plans to your athletes' individual needs.
5. Don't deviate from your plans without good cause.

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6. Keep all records of your planning and testing.

## Duty 2: Provide Proper Instruction

A jury rejected a negligence claim from a U.S. high school baseball player who sued his coach and school for more than $1 million alleging that improper technique instruction had resulted in him breaking his ankle, which required three surgeries to correct. The player was attempting to stretch a double into a triple, and the coach signaled for him to slide into third base, at which time he injured his ankle. The coach's attorney provided evidence of a technically sound progression of practices in which the coach taught sliding and then the players practiced it. The jury agreed that sliding into base during a game is routine, that it had been taught and practiced, and that the coach's signal to slide demonstrated reasonable care and supervision (White, 2019).



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### *Understanding Your Duty*

You have a duty to teach technical and tactical skills correctly and thoroughly, so athletes are at a reduced risk of injury and injuring others. In general, the law requires you to teach athletes in accordance with accepted procedures of the sport, allowing for individual variations if those variations are not radical or dangerous. For example, you can use a number of approaches to teach feet-first sliding in baseball, but if you teach head-first sliding and the athlete is injured, you have a good chance of being found negligent. Although many advanced baseball players slide head-first, the technique is not accepted as the correct way to slide.

If you are the head coach, your instructional duty cannot be delegated. If you ask assistant coaches or more-skilled athletes to teach skills, you must supervise their instruction because you are responsible for ensuring that it is correct.

### *Fulfilling Your Duty*

1. Keep abreast of current instruction standards for your sport and use them.
2. Teach techniques, tactics, and rules in accordance with customary methods of your sport and your athletes' developmental levels.
3. Make your instructions clear, complete, and consistent. Provide adequate feedback on how your athletes are progressing.
4. If you are a head coach, you must supervise any instruction that you delegate to others.
5. Keep records of all your practice plans that corroborate your quality and progression of instruction.

## Duty 3: Warn of Inherent Risks

Jaeshawn Price, a former high school football linebacker, was awarded $11.5 million by an Ohio jury after sustaining a spinal cord injury that occurred when he tackled an opposing running back. Jaeshawn's head was lowered prior to the tackle in a spearing action into the ballcarrier's chest, resulting in the injury and quadriplegia. The coach, one of several defendants in the lawsuit, was found negligent for failing to warn Jaeshawn that this action could result in serious injury. The coach and school could prove that they taught the proper tackling technique (head up), but the coaching staff failed to warn players of the inherent risk of brain and spinal injuries in tackling inappropriately by leading with the head.



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### *Understanding Your Duty*

Although you cannot protect athletes from all risks in the sport, athletes must know, understand, and appreciate the risks inherent in the sport to be able to assume them. Just how much understanding is required is not clear, but one warning may not be sufficient. Your warnings should be thorough, clear, and repeated. It is not enough to teach the correct technique. You must teach the correct technique and warn of the risks

of using incorrect technique. In the case of tackling in football, players must be repeatedly warned of the catastrophic consequences that can occur from leading with the head and helmet when making a tackle.

Accepted ways of warning athletes of inherent risks in the sport include the following:

- Posting signs describing risks and how to perform the sport skills properly
- Meeting with the team to explain the risks, followed by repeated warnings in practices and contests
- Placing descriptions of risks in player handbooks and parent orientation programs
- Using participation agreements, which are signed by parents or guardians and athletes, to explain the risk in specific terms
- Showing films or videotapes that illustrate the risks

### *Fulfilling Your Duty*

1. Warn your athletes of the inherent risks of the sport so they know, understand, and appreciate them.
2. Use written notices, releases, videos, and repeated warnings to ensure your athletes understand the risks and are mindful of them.

## Duty 4: Provide a Safe Physical Environment

After a short but heavy rain, the softball infield was too muddy to use for practice, so Coach Ellen Archer moved the team to a large grass field. Morgan Eckhart stepped in a hole, breaking her leg in three places. The resulting litigation found Coach Archer negligent for not properly inspecting the playing facility.



Gordon Chibroski/Portland Press Herald via Getty Images

### *Understanding Your Duty*

Playing sports holds an inherent risk in any physical environment, but you as a coach are responsible for regularly and thoroughly inspecting the facility. How regularly depends

on the activity. The greater the risk is, the more frequent your inspections should be. If you want to be a good risk manager, we recommend that you develop a facilities inspection checklist for your sport.

You also have a duty to notice hazards and do what you can to reduce their risks. When you cannot eliminate a hazard, such as a protruding rock on a playing field or a wall too close to the end line of a basketball court, you are responsible for trying to reduce the hazard and for warning your players about it. You might place a bright cloth over the rock or pad the wall and warn players to avoid it. Again, you are expected to do what a prudent coach would do in the same situation.

When you encounter a facility that does not conform to the standards set by your sport's governing body, you have a duty to notify the facility manager that the facility is unsafe and to recommend corrective action.

Remember, too, that the physical environment can change when you are practicing or competing, whether you are inside or out. Rain-slick play- ing surfaces, high winds, and lightning can make outdoor environments unsafe quickly. Although changes are less likely indoors, facilities can still become hazardous quickly if there is a loss of lighting, heat, or moisture control. You must continuously monitor a changing environment to determine whether it is safe for your athletes and to take appropriate action if it isn't.

### *Fulfilling Your Duty*

1. Note and remedy hazardous conditions through regular inspections of the playing facility and the warm-up, training, and dressing areas.
2. Develop a facilities inspection checklist for the facilities and equipment used in your sport. Use it regularly, and keep this checklist on file.
3. Change dangerous conditions that you can; reduce the hazard if you cannot remove it. Warn your players of the hazard and notify the facility manager through written recommendations about correcting the hazard.
4. Give precise rules for using the facility. Post the rules, remind the players of them, and consistently enforce them.
5. Monitor the changing environment and make prudent judgments about continued participation if it becomes hazardous.

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## Duty 5: Provide Adequate and Proper Equipment

Robert Bloom thought he was making a good buy when he purchased new plastic face masks for his hockey team. The school maintenance man had mounted the masks onto the helmets, although no instructions were provided on how to do so. Four weeks into the season, an opponent's high stick hit Brad Kosnick's mask, shattering the mask and sending a plastic splinter into his left eye. Brad lost the sight in that eye, and in the court trial, the mask manufacturer, Coach Bloom, and the school were found negligent.



GabrielPevide/E+/Getty Images

### *Understanding Your Duty*

Not only should you provide adequate and proper equipment, you must also explain its correct use and unique characteristics. For example, a football helmet is intended to protect the player, but when used incorrectly, it can be dangerous to both the player and those he plays with. Similarly, gymnastics apparatuses are designed to be as safe as possible for specific events, but when used incorrectly, they can be highly dangerous.

You must inspect equipment regularly. If it is worn or broken, you must remove it from use or have it properly repaired.

Buy the best equipment you can afford. Also be sure that all equipment meets the standards of the National Operating Committee on Standards for Athletic Equipment (www.nocsae.org) or of the national governing body for your sport. Purchase equipment with the ages and skill levels of your athletes in mind. When an athlete or the school furnishes the equipment, you have less legal responsibility for its meeting these standards or being safe.

Much of the responsibility for equipment safety falls on the manufacturers, partly because of the "deep pockets" approach to litigation. The manufacturer has substantial financial resources and thus should bear the responsibility for faulty equipment.

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Nevertheless, you have a duty to see that equipment fits properly and is used according to the manufacturer's specifications.

Be sure equipment is properly stored. Leaving equipment, such as weights or trampolines, in unlocked and unattended areas invites injury and litigation.

### *Fulfilling Your Duty*

1. Buy the best equipment you can afford, considering the ages and skill levels of your athletes.
2. Teach your athletes how to fit, use, and inspect their equipment. Encourage them to return any equipment that does not fit or appears defective.
3. Inspect equipment regularly; the more stress placed on the equipment, the more frequently you should examine it.
4. If players bring their own equipment, you still have a responsibility to inspect it and ensure that it complies with safety standards.
5. Allow only qualified people to install, fit, adjust, and repair equipment. You may want to insist that a manufacturer's representative fit all equipment (e.g., helmets, pads, and mouth guards).
6. Warn players of potentially hazardous equipment, and give verbal and written instructions on using it.
7. Be aware of changes in equipment by keeping current on accepted standards.

## Duty 6: Match Your Athletes Appropriately

Noah Henderson was a 115-pound (52 kg) football player who irritated Coach Jack Bennis with his continual misbehavior and boasting of unfounded ability. After an hour of Noah's provocations one day, Coach Bennis organized a one-on-one tackling drill and matched Noah with Jacob McNab, a 205-pound (93 kg) tackle and the team's strongest player. In the drill, Noah suffered a serious concussion and was hospitalized. The court found Coach Bennis negligent for his imprudent judgment in matching the players.

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### *Understanding Your Duty*

This duty is especially pertinent to contact and collision sports but is also relevant in sports in which balls are thrown or hit to other players. Although matching athletes by age is common in sports, as we discussed in chapter 4, doing so may not necessarily ensure that they are well matched in size and experience. Two boys with a chronological age of 14 can differ by five years in biological age (physical maturity). One boy might weigh 75 pounds (34 kg) and have the biological age of an 11-year-old, and the other might weigh 240 pounds (109 kg) and have a biological age of 16. Matching these two players in a contact sport is obviously dangerous, and the courts have found coaches like Jack Bennis who do so to be negligent.

Your duty is to see that your players are not placed in situations in which they are at such a disadvantage that it increases their risk of injury. Consider the following factors when matching athletes:

- Age
- Size
- Physical maturity
- Technical skill
- Experience
- Conditioning level
- Sex, especially on mixed teams
- Athletes returning after recovering from an injury
- Athletes with disabilities

### *Fulfilling Your Duty*

1. Match players according to size, maturity, skill, and experience as well as age so that they are not placed in situations that increase the risk of injury.
2. Enforce eligibility rules; they often are intended to provide equitable competition.

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3. Modify the drill or practice structure when mismatches in ability cannot easily be corrected.
4. Be especially alert to mismatches between the sexes, when athletes are recovering from injury, and among athletes with disabilities.

## Duty 7: Evaluate Athletes for Injury or Incapacity

Caitlyn Hamilton returned to her high school soccer team's practice in the late summer, while still healing from surgery to repair a torn ACL (knee ligament). Her doctor agreed that she could participate in some basic conditioning and individual ball drills, but that she should not engage in any scrimmage or contact activities with her knee still healing. Her father phoned head coach Tara Christianson to clarify the importance of keeping Caitlyn out of scrimmage or contact drills. He admitted to the coach that Caitlyn was headstrong and so eager to return to play that he was afraid she would try to do too much. Coach Christianson assured Caitlyn's father that she would enforce the medical restrictions he had noted. But an assistant coach who had shown up late for practice and had not been briefed by Coach Christianson included Caitlyn in a two-ontwo drill, which resulted in Caitlyn re-tearing her ACL. The injury ended her high school career, possible college playing career, and debilitated her ability to run and be active. The court awarded the Hamiltons $5.5 million in damages, finding that the coaches were negligent.



Portra/E+/Getty Images

### *Understanding Your Duty*

You have three important responsibilities to fulfill this duty:

1. You must ensure that an athlete's health is satisfactory for participation in your sport at the beginning of the season.
2. You must determine whether an illness or injury during practice or competition is sufficiently threatening that participation should be stopped.

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3. You must ensure that an injured athlete is ready to return to play.

These responsibilities are not yours solely but are shared with parents or guardians, athletic trainers, and physicians. In fact, good risk managers transfer as much of these responsibilities as possible to the team physician or athletic trainer. Such a transfer of responsibility is often not possible, however, and, therefore, you should learn more about the preparticipation physical examination, coaching athletes with disabilities, and making prudent decisions about injured athletes.

## Preparticipation Physical Evaluation

Various medical associations recommend that athletes have preparticipation physical examinations every two years. However, most states require some form of annual physical examination prior to participation.

The primary objectives of preparticipation physical examinations are to identify conditions that may be life-threatening or disabling to players and that may predispose them to injury, and to meet legal and insurance requirements. A good examination should include the following:

- *A completed medical history.* Most states and organizations require that specific forms be completed. Search the Internet for "medical history form for sport preparticipation examination," and you will find several forms are available in pdf format. The medical history is important because it can identify if the athlete may be at risk for any activity based on certain health or orthopedic conditions.
- *A physical examination.* Physical examinations for sport participation should measure weight, height, visual acuity, blood pressure, and heart rate. The extent of the examination may depend on the physical requirements of specific sports.

If any health conditions are identified in the medical history or preparticipation examination, then the physician, in consultation with the athlete and the athlete's parents or guardians, must determine whether the athlete can safely participate. Then the physician, parents or guardians, athlete, you, and possibly your sport administrator should agree on the conditions and limitations of the athlete's participation.

## Coaching Athletes With Disabilities

When considering whether an athlete is physically capable of participating on your team, keep in mind the implications of the Americans with Disabilities Act (ADA). The act's intent is to give people with disabilities the same opportunities for involvement as those afforded to people without disabilities.

What do you do if an athlete who is blind, deaf, or confined to a wheelchair or has a chronic illness or psychological disorder wants to play on your team? Unless your organization has specific guidelines, we recommend that you follow the guidelines of the National Collegiate Athletic Association (NCAA):

*The NCAA encourages participation by student-athletes with disabilities (physical or mental) in intercollegiate athletics and physical activities to the full extent of their interests and abilities. An NCAA member institution will have the right to seek, on behalf of any student-athlete with a disability participating on the member's team, a reasonable modification or accommodation of a playing rule, provided that the modification or accommodation would not:*

- *Compromise the safety of, or increase the risk of injury to, any other student-athlete;*
- *Change an essential element that would fundamentally alter the nature of the game; or*
- *Provide the student-athlete an unfair advantage over the other competitors (National Collegiate Athletic Association, 2021).*

Before you decide to exclude an athlete from participating on your team on the basis of a disability, be sure to discuss the issue with your sport director or chief administrator to consider the implications of the ADA.

### Injured Athletes

When athletes are injured during practice or competition, you must judge the risk of returning them to play. When a physician or athletic trainer is present, you can transfer that responsibility to that person. If you do not hire the services of a physician or athletic trainer, your best approach is to take a sport first aid course to learn how to respond to a variety of sport injuries.

#### *Fulfilling Your Duty*

1. In cooperation with your medical support team, require evidence that all athletes have received preparticipation physical examinations in the past two years (or annually according to your state's requirement).
2. Keep every athlete's medical history on file.
3. Recommend that your medical support team follow the American Academy of Pediatrics (AAP) guidelines in determining whether and under what conditions persons with special conditions can participate.
4. Follow the NCAA guidelines in seeking to accommodate people with impairments who want to participate on your team.
5. Use sound judgment in identifying athletes who are injured or so ill that they should not participate.
6. Get medical and parental approval before permitting seriously ill or injured athletes to return to participation.

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## Duty 8: Supervise the Activity Closely

High school basketball coach Sue Emmerling was in a practice session working on speed drills when a student-assistant called her to the office for an important telephone call. The team continued to practice but became reckless, and the drill degenerated into horseplay. Two players collided; one broke her jaw and knocked out several teeth. Coach Emmerling was sued and found negligent for failing to fulfill her duty to supervise properly.



HRAUN/E+/Getty Images

### *Understanding Your Duty*

Your duty to supervise requires both general and specific supervision. General supervision is being  in the area of activity so you can see and hear what is happening. It is required of all preparation areas, such as locker rooms and playing facilities before and after practice. You are expected to be

- immediately accessible to the activity and able to oversee the entire program systematically,
- alert to conditions that may be dangerous to players and to take action to protect them, and
- able to react immediately and appropriately to emergencies.

Specific supervision is direct supervision at  the immediate location of an activity; it is more action oriented than general supervision. You should provide specific supervision when you teach new skills and continue until your athletes understand the requirements of the activity, the risks involved, and their own ability to perform in light of these risks. Specific supervision is also advised when you notice athletes breaking rules or a change in the condition of your athletes.

As a general rule, the more dangerous the activity, the more specific the supervision. More specific supervision is required with younger and less-experienced athletes. You are expected to foresee potentially dangerous situations and be positioned to help

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prevent them from occurring. This requires that you know your sport well, especially the rules intended to provide for athlete safety.

Failure to supervise adequately is among the most common sources of lawsuits in sport. You cannot take this legal duty lightly. Supervision requires actively directing and controlling the activity as appropriate. In a lawsuit, the court will consider the activity, the type of supervision provided, and the location and competency of the coach in determining negligence. The degree of supervision is expected to be proportional to the risk of injury that is known or can be reasonably expected.

### *Fulfilling Your Duty*

1. Always provide general supervision for all facilities and playing areas your team uses.
2. Provide specific supervision when teaching new skills and when the risk of injury increases.
3. Know your sport so well that you can anticipate potentially dangerous situations and be positioned to prevent them from occurring.
4. Use posters, notices, and signs to support but not replace your supervision.
5. Do not condone reckless or overly aggressive behavior that threatens the safety of any athlete.

## Duty 9: Provide Appropriate Emergency Assistance

Joshua Fugate, a 5-foot-11-inch (180 cm), 300-pound (136 kg) offensive lineman, collapsed on the first day of football practice after a conditioning test. All players were required to run the stadium stairs despite the August temperature in the 90s. Joshua was given water and told to rest under a shade tree. He left practice alone and then was found unconscious in his car with the door open by the assistant coach. The assistant delayed calling 911 in order to contact the head coach, leading to a 20-minute delay before EMTs arrived. Joshua died of heat stroke a few hours later. The court found that the coaches failed to exercise reasonable care in many areas, including the duties to provide immediate emergency medical response and implement a carefully planned emergency medical response plan.

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### *Understanding Your Duty*

You have a duty to provide or secure appropriate medical assistance for injured or ill athletes you coach. If medical assistance is not immediately available, you have a duty to provide appropriate first aid. Every coach should complete a sport first aid course such as the one offered by ASEP.

To meet your duty to provide emergency assistance, you should first obtain consent to provide emergency assistance from the athlete's legal guardian if the athlete is not of majority age. Form 20.5 is a sample informed consent form. Next, you should develop a written emergency plan that you keep readily available. Form 20.6 provides a sample of such a plan. It describes what is to be done immediately, who contacts emergency medical help and how, how to transport an injured athlete, who contacts parents or guardians and school officials, and how to complete an injury report. Know this plan, practice it, and follow it when an emergency occurs.

After an injury, you should complete an injury report form.This form should be completed after any serious injury, meaning any injury that causes the athlete to miss at least one practice.

Whenever possible, transfer the risk associated with emergencies to more qualified people. Have an on-site team physician whenever possible, and employ an athletic trainer if you possibly can. When an injury occurs, provide only the first aid you are qualified to perform and then immediately obtain medical assistance.

### *Fulfilling Your Duty*

1. Obtain a consent form for each athlete at the beginning of the season.

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2. Protect the injured athlete from further harm.
3. Provide appropriate first aid.
4. Attempt to maintain or restore life by applying CPR when required.
5. Comfort and reassure the athlete.
6. Activate your emergency plan, transferring the treatment responsibility to trained medical personnel.
7. Complete your injury report form as soon after the injury occurrence as possible.

## Duty 10: Protect Against Physical and Psychological Harm From Others

The parents of two first-year high school baseball players filed lawsuits against older members of the team, the coaches, and the school district for hazing. The players said they were held down, sexually abused, physically tortured, and psychologically distressed from verbal abuse. The parents charged that the coaches knew of the incident and did nothing to prevent it or punish the perpetrators. The charged players claimed the hazing was much milder than stated, and the coaches denied they knew of the hazing incident. The matter is now being litigated.



Paul Yates/fotolia.com

### *Understanding Your Duty*

Just as you have a legal duty to provide a safe physical environment, you have a duty to protect your athletes from physical and psychological harm inflicted by others. As the U.S. legal system evolves, you now have a legal duty to protect your athletes from discrimination, physical acts of violence, and psychological trauma. Remember that negligence can be charged against you not just for doing something wrong, but for failing to do something right.

*Fulfilling Your Duty*

1. Develop policies against discrimination of all types, hazing and bullying, and sexual harassment.
2. Inform all those involved with your team of these policies.
3. Be keenly observant for signs of inappropriate behaviors and investigate when you believe they may be occurring.
4. When inappropriate behaviors occur, apply appropriate punishments as described in your team policy.
5. Report incidents to authorities if the severity of the incident merits it.
6. Keep records of your observations and actions.

## Other Duties

You have reviewed the 10 major duties required of coaches to help manage the risk of injury to your athletes and the risk of legal liability to yourself. Several additional duties also warrant your consideration.

### Keep Adequate Records

You can reduce your risk of losing a lawsuit by keeping the following records regarding your 10 legal duties:

- Preseason and periodic player evaluations
- Season and practice plans
- Season schedule
- Health history forms
- Emergency information cards
- Medical clearances based on preparticipation physical examinations
- Completed facility and equipment checklists
- Emergency plan
- Informed consent forms
- Eligibility records
- Injury reports
- Policies related to discrimination, hazing and bullying, and sexual harassment

### Provide Safe Transportation

The best way to transport your athletes in terms of liability is by public carrier. You thus transfer the responsibility to the carrier, and often they offer the safest and most convenient way to travel. The next best option is to use a vehicle owned by the school or agency for which you coach. Be certain that whoever drives the vehicle has the proper license if a special classification is required.

The least preferred choice is to drive your own automobile. If you transport athletes in your car, be certain that you are properly licensed and insured and that your vehicle is in

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good repair. Some insurance policies invalidate the personal liability section of a policy if the driver is compensated for transporting others. If your school or sponsoring agency asks you to drive your car, find out whether any insurance coverage is provided. Never allow athletes to transport other athletes to competitions.

## Follow Due Process

You are expected to protect your athletes' constitutional rights, including the following:

- The right to fair treatment and not to be subject to arbitrary or capricious rules
- The right to free expression (meaning that you cannot impose unreasonable requirements regarding dress, hairstyles, and use of social media, for example)
- The right to confidentiality regarding medical information

When you see the need to discipline athletes by imposing significant punishments on them such as suspending them from practices or games or dismissing them from the team, you will want to be cognizant of athletes' rights to due process. Many state associations and other sport organizations have imposed specific requirements for the procedure you must follow to meet athletes' rights to due process. Check with your sport administrator for any specific requirements. These procedures commonly consist of the following three steps:

1. Provide athletes with notice of charges or violations and the penalty to be imposed.
2. Allow athletes to present their side of the situation.
3. Provide a written record of findings.

In minor cases, these requirements can be met by telling athletes what rule they have violated and what penalty will be imposed, and by then pausing to allow them to respond. For major violations, you may need to provide a written notice of the violation and the penalty, conduct a formal hearing, and follow up with a written record of findings from that hearing. One of the most frequent problems coaches encounter is reacting too quickly without giving athletes an opportunity to respond until a penalty has been imposed. You can avoid most problems with due process by making sure you have given athletes a chance to present their side of the situation.

## Pursue Proper Training

By now, you should realize that as a coach, you have a legal responsibility to be properly trained to fulfill your duties. Without appropriate training, the risk of injury for athletes and lawsuits for you and your sponsoring agency increases greatly. The courts are telling us that it is no longer acceptable to place an unqualified person into the position of coach to supervise athletes.

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If you are a head coach, you also are responsible, along with your sponsoring agency, for ensuring that your assistants are qualified. If you use untrained assistants, you must provide close and direct supervision until they demonstrate competency.

As coaching becomes a more formally recognized profession, mandatory training and certification are a rapidly approaching reality. Although certification is no guarantee of competency, it is a big step in the right direction. Certification does not guarantee protection from lawsuits, but it will help you defend yourself against them.

## Waivers and Participation Agreements

As lawsuits have increased in sport, many sponsoring agencies have turned to using waivers of responsibility to absolve or indemnify themselves (hold themselves harmless). The waiver or release is a contract signed by participants or their parents or guardians that seeks to transfer responsibility from the sponsoring agency to the participant. Waivers have limited legal value for several reasons:

- Minors cannot enter into contracts, and parents and guardians cannot waive minors' rights to sue.
- The courts reject contracts to waive negligence.
- It is frequently considered a violation of public policy to require a release prior to participation in a sport.

Although waivers may have some psychological value in discouraging people who have signed them from suing, don't put confidence in waivers as part of your risk management plan. Instead, consider using participation agreements, which are not contracts but signed documents stating that your athletes

- understand the dangers inherent in the sport;
- appreciate the consequences of the risks involved, including the possibility of injury and death;
- know the sport's rules and procedures and the importance of following them; and,
- knowing all this, request to participate in the sport.

Participation agreements must be stated explicitly, they must list the rules to be followed, and they must spell out clearly the possible dangers. Participation agreements cannot prevent lawsuits or absolve you from negligence, but they clearly establish that you fulfilled your duty to warn. Remember that athletes cannot assume risk for something about which they are ignorant; participation agreements spell out the inherent risks in your sport. For athletes who are minors, their parents or legal guardians must also sign the participation agreement.

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